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California Legislature approves tax on guns, ammunition

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The California Legislature has passed the country's first excise tax on firearms and ammunition, with the proceeds funding gun violence prevention and school safety programs.

The bill approved Thursday would impose an 11 percent excise tax on all guns and ammunition sales. Gun and ammunition-sellers would pay the new state tax on top of the federal excise tax of 10 percent on the wholesale price of handguns and 11 percent on long guns and ammunition, with the proceeds going to state wildlife conservation and hunter safety programs.

The tax would take effect on July 1 and would generate about $159 million in revenue annually, according to an estimate from the California Department of Tax and Fee Administration.

Most states don't have a special tax just for guns. Pennsylvania collects a $3 surcharge on gun sales and uses the money to pay for background checks. California already imposes a fee of $37.19 on gun sale, with most of that money covering the cost of background checks.

California's proposed tax wouldn't apply to people who buy the guns. Instead, the state would make the businesses that sell guns and ammunition pay the tax. However, most of the time businesses will raise prices to cover the cost of the tax. Law enforcement agencies and officers, or retired officers, would be exempt from the tax. Firearms vendors with less than $5,000 in sales per quarter wouldn't have to impose it.

Because it is a tax increase, the bill required approval from two-thirds of legislators in the Assembly and Senate. Democrats currently hold super majorities in each chamber. All Republicans opposed it or didn't vote in preliminary tallies.

The bill now goes to Democratic Governor Gavin Newsom, who has until Oct 14 to decide whether to sign it into law. It's not clear what he will do. A spokesperson for Newsom said the governor would "evaluate the bill on its merits".

Newsom has opposed some high-profile tax increase proposals in recent years. He has also been on a crusade to improve gun safety, signing a law last year that lets private citizens enforce the state's ban on assault weapons by filing civil lawsuits against anyone who distributes the weapons, parts that can be used to build the weapons, guns without serial numbers, or .50-caliber rifles.

"It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States," said Jesse Gabriel, a Democratic Assembly member who wrote the bill.

Gabriel said his intent wasn't to discourage people from buying guns, but to provide a stable source of funding for gun violence programs "which I believe, with every fiber of my being, are going to save lives and protect communities in state of California''.

Gun-rights groups tried to quash the bill, which they say will make it harder for people to legally buy guns and price hunters and youth sports shooters out of their hobbies.

"It's a poll tax. It's a tax on exercising a constitutional right," said Chuck Michel, president of the California Rifle and Pistol Association, a firearms advocacy. "We're going to have to file a lawsuit to challenge it."

"The allocation of these funds will lay the necessary groundwork to prevent future devastation and unnecessary death," said Kris Brown, president of Brady, a gun-control advocacy group.

But Republicans and a handful of Democrats said the tax would do little to prevent gun violence. Some questioned the purpose of raising taxes on guns in a state that already has one of the lowest gun death rates in the country. California ranks 43rd of 50 states with nine deaths for every 100,000 people, according to 2021 data from the Centers for Disease Control and Prevention. But violent crimes have increased recently. The violent crime rate increased by 6.1 percent in 2022, according to the California Department of Justice. Homicides decreased in 2022 by 6.6 percent.

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